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WESTERN DISTRICT OF TEXAS
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KOSTIANTYN MARS
6001 W Parmer Ln, Ste 370 448
Austin, TX 78727
Phone Number: 202.505.9444
Email: legal@marsjustice.io

KOSTIANTYN MARS, PRO SE

UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF TEXAS
AUSTIN DIVISION

KOSTIANTYN MARS

Plaintiff,

vs.

STATE OF CALIFORNIA;

GAVIN NEWSOM, in his official capacity as Governor of the
State of California;

BETH MCGOWEN, in her official and individual capacities as
Presiding Judge of the Santa Clara County Superior Court;

JULIE EMEDE, in her official and individual capacities as
Presiding Judge of the Santa Clara County Superior Court;

SANTA CLARA COUNTY SUPERIOR COURT;

HANNA MARS

(Petitioner in the above-referenced state matters);

and all other judges, officials, agents, and co-conspirators acting
under color of law, including but not limited to Stephen Lowney,
Andrea Flint, James Towery, Thomas Kuhnle, Benjamin
Williams, Michael Clark, and Jessica Tenorio,

Defendants.

) Case No. :

) 1:26-cv-01624-RP-ML

) MOTION FOR

) EXPEDITED HEARING

) DATE:

) TIME:

) DEPT:

MOTION FOR EXPEDITED HEARING
ON PLAINTIFF'S

EMERGENCY MOTION FOR TEMPORARY RESTRAINING ORDER AND
MOTION TO DISMISS CRIMINAL CASE B2402220 WITH PREJUDICE

Plaintiff Kostiantyn Mars, appearing pro se, respectfully moves this Honorable Court for an
order setting an expedited hearing on his pending Emergency Motion for Temporary
Restraining Order and Motion to Dismiss Criminal Case B2402220 with Prejudice.

In support of this Motion, Plaintiff states as follows:

I. INTRODUCTION

Plaintiff seeks expedited consideration of his pending Emergency Motion for Temporary Restraining Order and Motion to Dismiss Criminal Case B2402220 with Prejudice.

The most urgent matters requiring immediate federal attention are:

- 1) the dismissal of the pending criminal case and outstanding arrest and bench warrants that continue to cause severe harm;
- 2) the release of Plaintiff's 401(k) funds currently blocked as leverage;
- 3) the dismissal of the DCSS case and all fabricated arrears;
- 4) the removal of Plaintiff from the statewide vexatious litigant list;
- 5) the issuance of a divorce decree and name-change order that remain completely blocked in California;
- 6) the restoration of parental rights, protection of Plaintiff's minor son Max Mars from ongoing harm in a war zone and return home to the United States, and other relief already requested in the pending Emergency TRO and Civil RICO Complaint.

Given the extraordinary urgency, ongoing irreparable harm, and the need for prompt federal oversight, Plaintiff requests that this Court set an expedited hearing on these motions at the earliest practicable date.

II. PROCEDURAL BACKGROUND

On or about June 15, 2026, Plaintiff filed his Notice of Removal together with the Emergency Motion for Temporary Restraining Order, removing five related Santa Clara County Superior Court matters (including Criminal Case B2402220) to this Court pursuant to 28 U.S.C. §§ 1441, 1443, and 1455.

The case has been assigned to the Honorable Robert Pitman and referred to Magistrate Judge Mark Lane.

Plaintiff has also filed a Motion to Dismiss the Criminal Case.

The underlying state court orders are subject to federal review as void and unenforceable.

III. GROUNDS FOR EXPEDITED HEARING

1. **Outstanding Criminal Case and Arrest/Bench Warrants**

Criminal Case B2402220 remains pending, together with Bench Warrant No. 002400020658 (issued August 21, 2024) and Arrest Warrant No. 2400025644 (issued October 23, 2024).

These warrants continue to cause immediate and severe harm, including interference with employment opportunities, background checks, and Plaintiff's ability to live and work freely.

Dismissal of the criminal case with prejudice and expungement of all related warrants is the most urgent relief requested.

2. **Blocked Access to 401(k) Funds and Ongoing DCSS Enforcement**

Plaintiff's 401(k) funds remain blocked, and DCSS Case No. 200000002626999 continues to generate arrears and negative credit reporting that Plaintiff challenges as unlawful.

These actions are causing ongoing financial harm, release of 401(k) funds and dismissal of the DCSS case and all arrears should be addressed on an expedited basis.

3. **Complete Blockage of Divorce, Name Change, and Access to California Courts**

The divorce case, name-change petition, and Plaintiff's ability to access California courts remain completely blocked by a void vexatious litigant order issued by a disqualified judge.

Prompt federal action is required to restore basic access to the courts and to promptly finalize the blocked cases.

4. **Ongoing Irreparable Harm to Parental Rights and Child Safety**

Plaintiff's minor son, Max Mars, remains abducted and is held without any contact under direct threat of international abduction to the war zone in Ukraine that presents direct threat to Plaintiff's son's life and risk of irreparable harm.

Continued delay of restoration of Plaintiff's custody rights creates a direct threat to Plaintiff's son's life and safety due to international abduction outside United States.

1 **5. Pattern of Racketeering Under Color of Law and Enforcement of Void Orders**

2 The record demonstrates a pattern of void orders, denial of due process, denial of access
3 to court, and the continued enforcement of orders issued after judicial disqualification.
4 Expedited consideration will allow the Court to address the threshold issues of
5 jurisdiction and formal nullification of the underlying void state court orders before
6 further harm occurs.

7 **6. Interest of Justice and Judicial Economy**

8 Prompt resolution of the pending Emergency Motion for Temporary Restraining Order
9 and Motion to Dismiss Criminal Case will prevent the continued enforcement of void
10 orders, clarify federal jurisdiction, and promote efficient adjudication of the threshold
11 issues before the Court.

12 **7. Notification to Federal Authorities**

13 Plaintiff has provided notice of this matter to multiple federal agencies and officials,
14 including the Federal Bureau of Investigation, the U.S. Department of Justice, the U.S.
15 Attorneys' Offices, the U.S. Department of State, underscoring the national significance
16 of the issues presented and the need for prompt federal attention.
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IV. REQUEST FOR REMOTE HEARING WITH MANDATORY RECORDING

In light of the documented pattern of retaliation, threats of unlawful incarceration, and the need for independent federal oversight, Plaintiff respectfully requests that any hearing be conducted remotely by video conference with mandatory simultaneous audio and video recording to preserve the record and protect against any potential fraud on the court.

VI. CONCLUSION

For the foregoing reasons, Plaintiff respectfully requests that this Court:

- A. Set an expedited hearing on the Emergency Motion for Temporary Restraining Order and the Motion to Dismiss Criminal Case B2402220 with Prejudice at the earliest practicable date;
- B. Conduct the hearing remotely via video conference with mandatory audio and video recording; and
- C. Grant such other and further relief as the Court deems just and proper, including consideration of the full relief already requested in the pending Emergency Motion for Temporary Restraining Order (including dismissal of the criminal case and warrants, release of 401(k) funds, dismissal of the DCSS case and arrears, issuance of a divorce decree and name change, removal from the vexatious litigant list, restoration of parental rights, and related protective relief).

Respectfully submitted,

DATED: July 15, 2026


KOSTIANTYN MARS
Pro Se

1 KOSTIANTYN MARS
 2 6001 W Parmer Ln, Ste 370 448
 3 Austin, TX 78727
 4 Phone Number: 202.505.9444
 5 Email: legal@marsjustice.io

6 KOSTIANTYN MARS, PRO SE

7 **UNITED STATES DISTRICT COURT**
 8 **WESTERN DISTRICT OF TEXAS**
 9 **AUSTIN DIVISION**

10 KOSTIANTYN MARS

11 Plaintiff,

12 vs.

13 STATE OF CALIFORNIA;

14 GAVIN NEWSOM, in his official capacity as Governor of the
 15 State of California;

16 BETH MCGOWEN, in her official and individual capacities as
 17 Presiding Judge of the Santa Clara County Superior Court;

18 JULIE EMEDE, in her official and individual capacities as
 19 Presiding Judge of the Santa Clara County Superior Court;

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(Petitioner in the above-referenced state matters);

22 and all other judges, officials, agents, and co-conspirators acting
 23 under color of law, including but not limited to Stephen Lowney,
 24 Andrea Flint, James Towery, Thomas Kuhnle, Benjamin
 25 Williams, Michael Clark, and Jessica Tenorio,

26 Defendants.

) Case No. :

) 1:26-cv-01624-RP-ML

) **PROPOSED ORDER**

) **GRANTING EXPEDITED**

) **HEARING**

) **DATE:**

) **TIME:**

) **DEPT:**

27 **PROPOSED ORDER**

28 **GRANTING PLAINTIFF'S MOTION FOR EXPEDITED HEARING**

This matter comes before the Court on Plaintiff's Motion for Expedited Hearing on Plaintiff's
 Emergency Motion for Temporary Restraining Order and Motion to Dismiss Criminal Case
 B2402220 with Prejudice.

Upon consideration of the Motion and the entire record in this case, and for good cause shown,

1 **IT IS HEREBY ORDERED** that:

- 2 1. Plaintiff's Motion for Expedited Hearing is GRANTED.
- 3 2. The Court will hold an expedited hearing on Plaintiff's Emergency Motion for Temporary
- 4 Restraining Order and Motion to Dismiss Criminal Case B2402220 with Prejudice at the
- 5 earliest practicable date.
- 6 3. The hearing shall be conducted remotely via video conference. The hearing shall be
- 7 simultaneously audio and video recorded to preserve the record.
- 8 4. The Clerk of Court is directed to schedule the hearing and provide notice to all parties as
- 9 soon as practicable.

10 **IT IS SO ORDERED.**

11 DATED: _____

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14 ROBERT PITMAN
15 United States District Judge
16 Western District of Texas

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CERTIFICATE OF SERVICE

I, Kostiantyn Mars, Plaintiff, hereby certify under penalty of perjury that on July 20, 2026, served true and correct copies of the following documents by U.S. Certified Mail, Return Receipt Requested, upon the parties listed below:

Documents Served:

1. Motion for Expedited Hearing on Plaintiff's Emergency Motion for Temporary Restraining Order and Motion to Dismiss Criminal Case B2402220 with Prejudice
2. Proposed Order Granting Plaintiff's Motion for Expedited Hearing
3. Copies of the following previously filed documents in this action (original removal package):
 - a. Notice of Removal and Emergency Motion for Temporary Restraining Order (filed on or about June 18, 2026)
 - b. Civil RICO Complaint (18 U.S.C. §§ 1961–1968; 42 U.S.C. § 1983)
 - c. Motion to Dismiss Criminal Case B2402220 with Prejudice

Parties Served:

1. **All state defendants and officials**, including the State of California, Gavin Newsom, Beth McGowen, Julie Emede, Santa Clara County Superior Court, Stephen Lowney, Andrea Flint, James Towery, Thomas Kuhnle, Benjamin Williams, Michael Clark, Jessica Tenorio, and Nancy Roberts, by service upon the Office of the California Attorney General at the following address:
Office of the Attorney General
1300 I Street
Sacramento, CA 95814-2919
2. **Defendant Hanna Mars**, by U.S. Certified Mail, Return Receipt Requested, at the following address:
Hanna Mars
1201 Sycamore Terrace #145
Sunnyvale, CA 94086

1 3. **Nancy Roberts** (Attorney for Hanna Mars), by U.S. Certified Mail, Return Receipt
2 Requested, at the following address:
3 Nancy Roberts
4 155 E Campbell Ave #255
5 Campbell, CA 95008

6 Executed on July 20, 2026, in Austin, Texas.
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KOSTIANTYN MARS
Pro Se
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Kostiantyn Mars
6001 W Parmer Ln, Ste 370 448
Austin, TX 78727



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Clerk of Court
United States District Court
Western District of Texas, Austin
501 West 5th Street, Suite 1100
Austin, Texas 78701